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SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631801

Plaintiff,

vs.

SUBHI ABDELHALIM; CSAA
INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

Defendants.

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF SPECIAL
MOTION TO STRIKE PLAINTIFF'S FIRST
AMENDED COMPLAINT PURUANT TO
C.C.P. § 425.16 (ANTI-SLAPP MOTION)**

[CODE CIV. PROC. § 425.16]

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I. INTRODUCTION

Plaintiff's Amended Complaint ("FAC") constitutes an impermissible collateral attack on a final judgment entered after a full jury trial and extensive pre- and post-trial proceedings. In the underlying action, a jury returned a defense verdict on liability following the presentation of all evidence Plaintiff claims was "wrongfully obstructed." The Court thereafter denied Plaintiff's multiple post-trial motions challenging the verdict and judgment. Plaintiff has since filed a notice of appeal, which remains pending.¹

Rather than awaiting appellate review, Plaintiff now asserts a single equitable claim styled as an "Independent Action to Set Aside Judgment for Extrinsic Fraud," naming not only the original defendant but also the insurance carrier and all underlying defense attorneys for their "conduct" in obtaining a defense verdict. **The FAC seeks to impose liability based entirely on Defendants' litigation conduct in defending the underlying case—including discovery practices, motions in limine, and representations to the Court.** These allegations do not state a cognizable claim as a matter of law and instead fall squarely within the scope of conduct protected by California's Anti-SLAPP statute and the absolute litigation privilege.

California courts have long recognized that subsequent lawsuits premised on a party's or counsel's participation in judicial proceedings—whether during discovery, motion practice, or trial—are barred as a matter of law. (Code Civ. Proc. § 425.16, subd. (e); Civ. Code § 47(b).) Representing a client in litigation, filing and opposing motions, managing discovery, and making arguments regarding the admissibility or weight of evidence are the epitome of protected petitioning activity. Mere disagreement with the jury's assessment of evidence, or with the Court's discretionary rulings, does not constitute extrinsic fraud and cannot justify setting aside a judgment. At most, Plaintiff alleges matters that were *intrinsic* to the underlying case insofar as they were all raised, litigated, and resolved in the underlying action—precisely the type of claims that are barred as a matter of law and must be addressed, if at all, through appellate review.

Accordingly, the FAC is subject to a special motion to strike under Code of Civil Procedure section 425.16 because (1) each allegation targets protected litigation conduct, and (2) Plaintiff cannot establish a probability of prevailing on the merits of his sole cause of action. **The absolute litigation privilege**

¹ See *Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case No. **A173827**; (see also RFJN **Ex. Q**, Plf's Notice of Appeal; RFJN **Ex. R**, Plf's Notice of Designating Record on Appeal.

1 independently bars Plaintiff's claim, and his equitable theory fails because no extrinsic fraud is
2 alleged or plausibly established.

3 For these reasons, the Court should strike the FAC in its entirety without leave to amend and award
4 Defendants their mandatory attorneys' fees and costs incurred in bringing this Special Motion to Strike.

5 II. SUMMARY OF ARGUMENT

6 Plaintiff seeks to make an improper collateral attack on a properly rendered jury verdict and this
7 Court's valid judgment. In ostensible support of this effort, Plaintiff complains of Defendants' collective
8 litigation activity resulting in a defense verdict. All the alleged conduct is protected under Civil Code §
9 47(b) and Code Civ. Proc. § 425.16(e) as part of Defendants' pre-trial discovery and litigation conduct.

10 Plaintiff's FAC must be stricken, in its entirety as both prongs of the Anti-SLAPP analysis are
11 satisfied. First, under prong one: The FAC's factual allegations arise entirely from Defendants' protected
12 litigation conduct: pre-trial discovery, motions in limine, and communications with the Court.

13 Second, under prong two: Plaintiff cannot possibly meet his burden of offering admissible
14 evidence establishing he has a probability of success on his cause of action. This is the case for several
15 reasons including: i) all alleged activity is protected conduct under Civil Code § 47(b); ii) Plaintiff's entire
16 theory is, in reality, a legally untenable collateral attack on a prior valid judgment;² and iii) Plaintiff cannot
17 establish "extrinsic fraud." Therefore, the action should be dismissed.

18 III. STATEMENT OF THE FACTS

19 A. THE PARTIES

20 Plaintiff is FRANCISCUS DYLAN ROSARIO ("Plaintiff").

21 Defendant CSAA INSURANCE EXCHANGE ("CSAA") was the insurance carrier for SUBHI
22 ABDELHALIM ("Insured") during the underlying trial.

23 Defendant CARBONE, SMITH & KOYAMA ("CARBONE") was the initially retained defense
24 counsel in Plaintiff's underlying litigation.

25 MICHAEL R. CHAMBERS ("CHAMBERS") was the handling defense attorney at CARBONE,
26 pre-trial. CARBONE and CHAMBERS substituted out of the case, prior to Plaintiff's jury trial on the
27 underlying litigation. (See RFJN Ex. D, *Substitution of Defense Counsel*).

28 ² Plaintiff's original Complaint in the related action against CSAA explicitly represented to the Court that "Plaintiff does not seek reversal or modification of any judgment in the Underlying Action." (See RFJN Ex. T, *Plaintiff's Original Complaint in related Action* ¶ 31) (*emphasis added*); (*but see* RFJN Ex. A, *Plaintiff's FAC*) (seeking to "set aside judgment").

CSAA, CARBONE, and CHAMBERS all together, jointly, file this Special Motion to Strike.

B. FACTUAL AND PROCEDURAL BACKGROUND

Plaintiff has filed this new action (*See* RFJN **Ex. A**, *Plaintiff's FAC*) against i) the same original defendant SUBHI ABDELHALIM (“Insured”); and now adds new parties, including: ii) CSAA INSURANCE EXCHANGE (“CSAA”); iii) and all insurance defense counsels retained by CSAA to defend Insured. (*See* RFJN **Ex. C**, *Register of Actions, Rosario v. Abdelhalim, Case No. CGC-21-594102*).

Plaintiff also names all members of the *trial* defense who litigated the case before the jury: Phillips, Spallas, and Angstadt, LLP, Priya D. Navaratnasingham, Alberto Reyna (collectively referred to as “PSA”). The FAC alleges that Defendants and PSA engaged in “fraudulent” conduct in obtaining the underlying defense verdict. However, all factual allegations are inextricably tied to Defendants’ litigation activity and such claims barred, as a matter of law. The gravamen of Plaintiff’s current allegations is that “[t]he fraud committed here was a scheme that prevented a fair contest by: (a) “obstructing access to and useable presentation of critical [evidence]; and (b) “making false or misleading representations to the Court, which induced procedural and evidentiary ruling under materially false pretenses.” (*FAC* p. 2, line 13-14). Plaintiff’s allegations here focus on two key areas, as against all Defendants, surrounding the evidence that was presented to the jury, at trial. Specifically, *first*, Plaintiff claims that “[t]he defense³ obstructed Plaintiff’s ability to present material evidence, including:

- a. 911 call recording containing Defendant Abdelhalim's party admission (“I barely hit him with anything”),
- b. body-worn camera footage containing eyewitness statements, and
- c. CAD logs. (*FAC* p. 3, line 6-9).

It is true that PSA attempted to exclude this evidence; however, the Court denied Defendant’s motions in limine targeting this evidence. (*See* RFJN **Ex. E**, *Def’s MIL # 6*; RFJN **Ex. F**, *Def’s MIL # 8*; RFJN **Ex. G**, *Def’s MIL # 17*; and RFJN **Ex. H**, *Order re Trial Scheduling and MILs*).

And *second*, Plaintiff claims that “[t]he defense then made false and misleading representations to the Court about receipt, possession, and prior production of these materials, falsely denying knowledge and receipt despite having received the materials during discovery. The Court relied on those representations to deny continuances, exclude materials, and defer admission, which impaired Plaintiff’s ability to present the evidence in a usable, timely way at a liability-only trial.” (*FAC* p. 2, line 9-13).

³ Plaintiff does not define “the defense,” in his FAC; hence, that term is interpreted to apply to all named Defendants, including the herein moving Defendants.

1 Crucially, the FAC does *not* claim that these items of “material evidence” (911 calls, body-worn
2 camera footage, and CAD logs) were excluded from presentation to the jury. In fact, on the contrary, all
3 this evidence *was* presented to the jury. (See RFJN **Ex. H**, *Order re Trial Scheduling and MILs*) (denying
4 Defendant’s motions in limine to exclude the alleged “material evidence”—MIL #17). Instead, Plaintiff’s
5 allegations focus on Defendants’ acquisition, retention, and production of this material evidence, during
6 pre-trial discovery, and essentially, that Defendants were negligent in how they litigated the defense of
7 the underlying lawsuit. This is not a cognizable claim.

8 **C. PLAINTIFF’S ORIGINAL SUIT ARISES OUT OF ALLEGATIONS THAT THE**
9 **INSURED HIT PLAINTIFF WITH HIS CAR, A CLAIM THAT WAS ULTIMATELY**
10 **REJECTED AT TRIAL EVEN THOUGH THE JURY WAS PRESENTED WITH**
11 **PLAINTIFF’S “MATERIAL EVIDENCE” IN QUESTION**

12 Plaintiff’s underlying personal injury lawsuit arose from an alleged motor vehicle on scooter
13 incident that occurred on February 4, 2021. Plaintiff alleged that he was struck by Insured’s vehicle while
14 Plaintiff was walking (or riding, it is unclear) a scooter through an intersection. Plaintiff filed suit against
15 Insured, alleging personal injuries, and the matter proceeded to trial. All the “material evidence” (911
16 calls, bodycam footage, and CAD logs) referenced in Plaintiff’s FAC was submitted to the jury and
17 testimony was offered by both sides on the relevance (or irrelevance) of that evidence. Ultimately, a
18 defense verdict was returned in favor of the Insured. The jury found that the Insured—Subhi Abdelhalim—
19 was simply not negligent in causing the incident.

20 After trial, Plaintiff filed a flurry of motions to set aside the jury’s defense verdict and this Court’s
21 judgment, including: i) a Motion for Judgment Notwithstanding the Verdict (See RFJN **Ex. I**, *Plf’s JNOV*;
22 see RFJN **Ex. J**, *Plf’s Decl. ISO JNOV*; see RFJN **Ex. K**, *Def’s Opp. to Plf’s JNOV*); ii) Motion to Vacate;
23 iii) A Second Motion to Vacate for Fraud on the Court; iv) Motion for New Trial (See RFJN **Ex. L**, *Plf’s*
24 *Mtn for New Trial*; RFJN **Ex. M**, *Def’s Opp. to Plf’s Mtn for New Trial and Mistrial*); v) Motion for
25 Mistrial; vi) A Second Motion for Mistrial; vii) an Ex Parte Request for Stay; and viii) a Request for
26 statement of Decision. All Plaintiff’s post-trial motions were denied. (See RFJN **Ex. N**, *Order on Plf’s*
27 *Post-Trial Mtns*). In those motions Plaintiff presented all the same meritless arguments, and others,
28 presented in this FAC.

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1 **D. DEFENDANTS CSAA, CARBONE, AND CHAMBERS HAD NO ROLE IN LITIGATION**
2 **AT THE JURY TRIAL**

3 As a threshold matter, the FAC alleges in several places that it was only PSA who committed this
4 “fraud on the Court”—none of these moving Defendants. The FAC asserts: “Defendants PSA,
5 Navaratnasingham, and Reyna were the counsel who made, ratified, and perpetuated these false
6 representations” to the Court, at the motion in limine phase, pre-trial. (*FAC* p. 9-10).

7 None of the allegations of “fraud on the Court” are even alleged against these moving Defendants.
8 Indeed, Defendants CSAA, CARBONE, and CHAMBERS did not litigate at trial and had no role in the
9 alleged “misleading representations to the Court.” (*FAC* p. 10:16-22). Still, the FAC alleges Defendants
10 are culpable by association. The FAC goes on to re-litigate a series of motions in limine filed by PSA—
11 not these moving Defendants. Further, the allegations go on to claim—not that any of the “material
12 evidence” was excluded (because it was not excluded)—but instead claims that the Court i) excluded a
13 “supplemental report”; ii) provided an “acceptance of false or misleading information”; iii) wrongly
14 denied a request for a trial continuance; and apparently iv) should have “ordered immediate on-the-record
15 verification measures...to allow Plaintiff to authenticate and present [the ‘material evidence’].” (*FAC* p.
16 13-14). The FAC’s proposed remedies, that this Court “should have ordered,” pre- or at-trial, are not at
17 all clear. (*Ibid.*)

18 Even before trial, Plaintiff filed a series of motions seeking to disqualify the assigned trial judge:
19 the Honorable Garrett L. Wong. In his “*Prayer to Judge Hon. Rochelle East*” [sic], accompanying his
20 motions, Plaintiff drew specific attention to all the same factual complaints he makes in this current FAC,
21 which conflate the acts Defendants and PSA:

- 22 1) “[t]he defense has actively attempted to suppress not only the 911 records but also the official
23 police records”; (*See* RFJN **Ex. Q**, p. 5:7-8, *Plf’s Prayer to Judge East*)
- 24 2) “With the financial backing of AAA (CSAA Insurance), the defendant has secured premier
25 legal representation, effectively impeding the course of justice. (*Id.* at 7:28-8:2)
- 26 3) Official 911 emergency records contain multiple admissions by the defendant, and eyewitness
27 testimony confirms that he forcefully ran me over”; (*Id.* at 8:2-3)
- 28 4) “[t]he defense clearly aims to keep everything out of the jury’s view, as denial is a core part of
AAA PSA Law’s modus operandi.” (*Id.* at 46:19-20)

29 This very Court issued a lengthy and abundantly clear Order denying Plaintiff’s motions seeking
30 to disqualify the trial judge. That order rejected Plaintiff’s evidentiary arguments—the same evidentiary

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arguments presented here—surrounding the defense’s trial conduct. (*See* RFJN **Ex. P**, *Order Denying Plf’s “Prayer” and 170.6*). This is legally untenable under the Anti-SLAPP statute.

The allegations conflate the acts of the various Defendants, making analysis of those pleadings more difficult for the Court. However, put simply: these moving Defendants did not commit any of the *trial* litigation acts alleged in the FAC. Defendants CARBONE and CHAMBERS engaged only in *pre*-trial litigation, including discovery, but substituted out, long before trial. Further, CSAA, in its role as a non-attorney insurance carrier, did not actively engage in trial, except by and through its retained defense counsels. However, the FAC attempts to shoehorn these allegations against *all* Defendants. Hence the Anti-SLAPP statute protects Defendants CSAA, CARBONE, and CHAMBERS.

1. Specific Allegations Against CSAA in the FAC

As a threshold matter, the allegations against CSAA cannot possibly constitute a cause of action. Moreover, relevant to this Anti-SLAPP motion, all the activity alleged against CSAA is protected litigation activity. The FAC makes the following factual allegations against CSAA:

- 1) CSAA was “[t]he liability insurer that funded, directed, and controlled the defense.” (*FAC* p. 2, line 1-2).
- 2) CSAA Insurance Exchange is the real party in interest that funded, directed, and ratified the litigation positions and representations that procured the judgment through fraud on the court. CSAA's institutional denial practice, including its issuance of a categorical “investigation concluded” denial letter just 21 days after the collision without obtaining foundational objective evidence, is the subject of the related action CGC-25-631802. (*FAC* p. 4:28-5:2).
- 3) “The defense obstructed Plaintiff’s ability to present material evidence, including:
 - a. a 911 call recording containing Defendant Abdelhalim's party admission ("I barely hit him with anything"),
 - b. body-worn camera footage containing eyewitness statements, and
 - c. CAD logs. (*FAC* p. 3, line 6-9).
- 4) The defense then made false and misleading representations to the Court about receipt, possession, and prior production of these materials, falsely denying knowledge and receipt despite having received the materials during discovery. The Court relied on those representations to deny continuances, exclude materials, and defer admission, which impaired Plaintiff's ability to present the evidence in a usable, timely way at a liability-only trial. (*FAC* p. 3, line 9-13).
- 5) “CSAA Insurance Exchange, made multiple false and misleading representations to the Court about receipt, possession, and prior production of the materials. These false representations were memorialized in written motions in limine and in open court statements.” (*FAC* p. 10.)

2. Specific Allegations Against Pre-Trial Litigation Counsel: CARBONE and CHAMBERS in the FAC

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1 The allegations against CARBONE and CHAMBERS are identical, with only slight verbiage
2 changes. Hence, for brevity, those allegations against them are summarized jointly, below:

- 3 1. CARBONE and CHAMBERS “had possession of the defense file when the 911 audio, body-
4 worn camera footage, and CAD materials were served on defense counsel during discovery.”
(FAC p. 6:13-14).
- 5 2. On May 4, 2023, Defendant CHAMBERS [and CARBONE] transferred the defense file to PSA
6 pursuant to the Substitution of Attorney ... without ensuring proper documentation and
conveyance of the production history to successor counsel. (FAC p. 6:15-18).
- 7 3. This failure enabled [PSA] to make false and misleading representations to the Court that the
8 materials were “news to me” and had not been received until the eve of trial, when in fact the
defense had possessed them during Defendant CHAMBERS’ tenure. (FAC p. 6:18-21).
- 9 4. Defendant CHAMBERS’ [and CARBONE’s] conduct constituted fraud on the court and was a
proximate cause of the process corruption that procured the judgment. (FAC p. 6:21-22).

10 **IV. LEGAL STANDARD UNDER CODE CIV. PROC. § 425.16**

11 The Legislature passed Code of Civil Procedure (“Code Civ. Proc.”) § 425.16 to protect against
12 strategic lawsuits used to attack individuals who exercise their rights under the First Amendment—
13 including affording protection for litigation activity. The Legislature adopted Code Civ. Proc. § 425.16 in
14 response to the disturbing increase in litigation “brought primarily to chill the valid exercise of the
15 constitutional rights of freedom of speech and petition.” Commonly referred to as the Anti-SLAPP Statute,
16 it “provides for the early dismissal of unmeritorious claims filed to interfere with the valid exercise of the
17 constitutional rights of freedom of speech and petition for the redress of grievances.” (*Club Members v.*
18 *Sierra Club* (2008) 45 Cal.4th 309, 312.) The Legislature has declared that the statute must be “construed
19 broadly” to that end. (*Fremont Reorganizing Corp. v. Faigin* (2011) 198 Cal.App.4th 1153, 1165.)

20 In application, the Motion involves a two-step process. Defendants must first make a prima facie
21 showing that the plaintiff’s claim arises from protected activity. (*City of Cotati v. Cashman* (2002) 29
22 Cal.4th 69, 76.) The burden then shifts to plaintiff to prove a probability of prevailing on the merits of the
23 claim. If plaintiff cannot meet that burden, the claim must be dismissed. (*Ibid.*)

24 **A. STEP ONE IS MET: PLAINTIFF’S CLAIM AGAINST DEFENDANTS ARISES OUT** 25 **OF PROTECTED ACTIVITY UNDER CODE CIV. PROC. § 425.16 AND CIVIL** 26 **CODE § 47(B)**

27 The FAC squarely targets Defendants’ protected activity under the litigation privilege set forth in
Civil Code § 47(b), which provides in relevant part:

28 ///

1 A privileged publication or broadcast is one made...(b) In any (1) legislative proceeding,
2 (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the
3 initiation or course of any other proceeding authorized by law and reviewable pursuant to
Chapter 2...

4 “The litigation privilege . . . applies to any communication (1) made in judicial proceedings; (2)
5 by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that
6 have some connection or logical relation to the action.” (*L.G. v. M.B.* (2018) 25 Cal.App.5th 211, 219.)
7 The litigation privilege “is not limited to statements made during a trial or other proceedings, but may
8 extend to steps taken prior thereto, or afterwards.” (*Digerati Holdings, LLC v. Young Money*
9 *Entertainment, LLC* (2011) 194 Cal.App.4th 873, 889.) Pre-litigation statements are protected where
10 litigation is “contemplated in good faith and under serious consideration.” (*Id.*) “The wording of the statute
11 protects the right of litigants to the utmost freedom of access to the courts without fear of being harassed
12 subsequently by derivative tort actions.” (*Trinity Risk Mgmt., LLC v. Simplified Lab. Staffing Sols., Inc.*
13 (2021) 59 Cal.App.5th 995, 1004.)

14 Courts interpret “protected activity” broadly. (*Gilbert v. Sykes* (2007) 147 Cal.App.4th 13, 23.)
15 The requirement is that “the principal thrust or gravamen of the plaintiff’s cause of action” arises from
16 protected activity. (*Martinez v. Metabolife Inter’t* (2003) 113 Cal.App.4th 181, 188.) Protected activity
17 includes, in part, “any written or oral statement or writing made in connection with an issue under
18 consideration or review by a legislative, executive, or judicial proceeding... “[and] any written or oral
19 statement or writing made in connection with an issue under consideration or review by a legislative,
20 executive, or judicial body.” (Code Civ. Proc. § 425.16(e)(1)-(2).) **In short, “[s]tatements made in**
21 **litigation, or in connection with litigation, are protected by” the Anti-SLAPP statute.** (*Bergstein v.*
22 *Stroock & Stroock & Lavan LLP* (2015) 236 Cal. App. 4th 793, 803.) “When evaluating whether the
23 defendant has carried its burden under the first prong of the Anti-SLAPP statute, courts must be careful
24 to distinguish allegations of conduct on which liability is to be based from allegations of motives for such
25 conduct. Causes of action do not arise from motives; they arise from acts.” (*Hunter v. CBS Broadcasting,*
26 *Inc.* (2013) 221 Cal.App.4th 1510, 1520.) Finally, the Anti-SLAPP statute “squarely applies to any direct
27 attack on the *judgment* in [a] prior action, which resulted from [an opposing party’s] petition activity.”
28 *Church of Scientology v. Wollersheim* (1996) 42 Cal.App.4th 628, 648 (disapproved of on other grounds).

1 Here, all the alleged activities against these moving Defendants arise from Defendants' pre-trial
2 investigation and litigation activity. That activity includes gathering evidence in discovery, maintaining
3 that evidence, transferring files to substituted counsel, and engaging in pre-litigation investigations. (*See*
4 Sections D.1, D.2 above) All this conduct is protected as speech and activity concerning litigation under
5 the first prong of the Anti-SLAPP test.

6 **1. The Allegations Against CSAA Target Protected Litigation Activity**

7 All activity alleged against CSAA is protected litigation conduct.

8 Courts have long found "internal investigations" conducted in anticipation of litigation to be
9 protected activity under the Anti-SLAPP statute. (*See Laker v. Bd. of Trustees of California State Univ.*
10 (2019) 32 Cal.App.5th 745, 753, 760.) (finding that absent any illegality, a pre-litigation internal
11 investigation constituted an "official proceeding authorized by law" under Section 425.16). The litigation
12 privilege has also been held to apply to "statements made prior to the filing of a lawsuit." (*Hagberg v.*
13 *California Federal Bank* (2004) 32 Cal.4th 350, 361) (*see also Home Ins. Co. v. Zurich Ins. Co.* (2002)
14 96 Cal.App.4th 17, 20, 22–26, (concluding that an attorney's misrepresentation of available insurance
15 policy limits to induce the settlement of a lawsuit is also protected). Finally, the California Supreme Court
16 has highlighted the policy behind the Anti-SLAPP statute thus:

17 "...in immunizing participants from liability for torts arising from communications made
18 during judicial proceedings, the law places upon litigants the burden of exposing during
19 trial the bias of witnesses and the falsity of evidence, thereby enhancing the finality of
20 judgments and avoiding an unending roundelay of litigation, an evil far worse than an
occasional unfair result." (*Flatley v. Mauro* (2006) 39 Cal.4th 299, 322) (emphasis added).

21 Here, Plaintiff seeks precisely what the Supreme Court noted as the chief risk absent the Anti-
22 SLAPP statute's protections: "unending ... litigation." (*Ibid*). He seeks to re-litigate his entire underlying
23 personal injury case, including CSAA's pre-litigation denial letter on that same claim. The FAC first
24 alleges that "CSAA's institutional denial practice, including its issuance of a categorical 'investigation
25 concluded' denial letter just 21 days after the collision without obtaining foundational objective evidence,
26 is the subject of the related action CGC-25-631802." (FAC p. 4:28-5:2); (*See also* RFJN **Ex. B**, *Plaintiff's*
27 *FAC in Related Case*). This is clearly protected, litigation activity pertaining to the same claim presented
28 to the jury. Notably, the jury agreed with CSAA and also found that the Insured was not negligent, which,
incidentally, reinforces the validity of CSAA's position of liability in its February 2021 denial letter.

1 Regardless, even if the jury had disagreed with CSAA, the mere fact that CSAA had issued an
2 early phase denial letter does not justify a new *third party* action against the carrier—here: to set aside
3 judgment. Plaintiff also alleges that CSAA “funded, directed, and controlled the defense.” (*FAC* p. 2, line
4 1-2). Not only is this not actionable, but these acts are wholly within the litigation privilege and required
5 under the Insurance Code and the insurance policy, as a part of CSAA’s duty to defend its Insured.

6 Third, Plaintiff claims that CSAA “obstructed Plaintiff’s ability to present material evidence,
7 including:

- 8 a. a 911 call recording containing Defendant Abdelhalim's party admission ("I barely hit
 him with anything"),
- 9 b. body-worn camera footage containing eyewitness statements, and
- 10 c. CAD logs.” (*FAC* p. 3, line 6-9).

11 How Plaintiff *believes* that CSAA effectuated this “obstruction” is not at all clear. However, even
12 if CSAA did ratify PSA’s litigation tactics of seeking to exclude evidence from trial, that activity (an
13 insurance carrier directing its defense counsel to file motions in limine) would clearly constitute litigation
14 activity, and would be protected conduct. (*See City of Colton v. Singletary* (2012) 206 Cal.App.4th 751,
15 767 (concluding that an allegation that a defendant engaged in unlawful, unfair, and fraudulent business
16 acts and practices “by filing motions or pleadings [in] court” and “by filing a civil lawsuit” squarely
17 concerned protected activity under the Anti-SLAPP statute and was subject to dismissal).

18 Fourth, and finally, Plaintiff’s *FAC* goes on to further impute the acts of PSA, as against CSAA.
19 Plaintiff cites no authority for the proposition that he can hold an insurance company (here, CSAA)
20 responsible for the litigation conduct of its insurance defense counsel. Still, that issue need not be reached
21 to find that the conduct here, by PSA, was protected litigation activity. Plaintiff alleges that:

22 “[t]he defense then made false and misleading representations to the Court about receipt,
23 possession, and prior production of [the “material evidence”], falsely denying knowledge
24 and receipt despite having received [it] during discovery. The Court relied on those
25 representations to deny continuances, exclude materials, and defer admission, which
26 impaired Plaintiff’s ability to present the evidence in a usable, timely way at a liability-only
27 trial.” (*FAC* p. 2, line 9-13).

28 All this is protected pre-trial litigation conduct in arguing motions in limine and engaging in pre-
trial discovery. Moreover, to the extent that Plaintiff took issue with this Court’s rulings on motions in
limine, the proper vehicle for contesting those rulings is an Appeal—not this legally unsupportable
lawsuit.⁴ It also bears repeating that the defense motions in limine to exclude the “material evidence” were

⁴ Indeed, Plaintiff has filed an Appeal, which remains pending. (*See Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case

denied, and that evidence was submitted to the jury, and Plaintiff was free to use that evidence to cross-examine the Insured—which he did, unsuccessfully. Ultimately, all the actions alleged against CSAA are acts that are protected litigation conduct under the Anti-SLAPP statute.

2. The Allegations Against CARBONE and CHAMBERS Also Target Protected Litigation Activity

Plaintiff also improperly targets the protected litigation conduct of CARBONE and CHAMBERS, which is squarely precluded by the Anti-SLAPP statute. First, Plaintiff alleges that CARBONE and CHAMBERS:

“had possession of the defense file when the 911 audio, body-worn camera footage, and CAD materials were served on defense counsel during discovery.” (*FAC* p. 6:13-14). Further claiming that “[o]n May 4, 2023, [CARBONE and CHAMBERS] transferred the defense file to PSA pursuant to the Substitution of Attorney ... without ensuring proper documentation and conveyance of the production history to successor counsel.” (*FAC* p. 6:15-18).

This is simply an allegation, if true, of negligence. Nothing here constitutes fraud, and even if it did, it would be protected as litigation conduct in the handling of pre-trial discovery.

Second, Plaintiff claims that:

“[t]his failure enabled [PSA] to make false and misleading representations to the Court that the materials were “news to me” and had not been received until the eve of trial, when in fact the defense had possessed them during [CARBONE and CHAMBERS’] tenure. (*FAC* p. 6:18-21).

Again, this is protected conduct, but further, these allegations are not even the conduct of these moving Defendants, CARBONE and CHAMBERS. This second allegation targets the litigation conduct of PSA as trial counsel. Still, the Anti-SLAPP statute bars this type of allegation, in kind.

Finally, third, Plaintiff alleges that “[CARBONE and CHAMBERS’] conduct constituted fraud on the court and was a proximate cause of the process corruption that procured the judgment. (*FAC* p. 6:21-22). The *FAC* provides no analysis on what specific conduct was “fraudulent,” with the exception of the above-listed, alleged, failure to transmit the full defense file. But again, handling pre-trial discovery while amidst litigation is precisely the activity contemplated in the litigation privilege and Anti-SLAPP statutes.

Defendants CARBONE and CHAMBERS simply litigated the case, pre-trial, and thereafter substituted in PSA, approximately two years before trial. What specific “misrepresentations” CARBONE and CHAMBERS made to the Court are not described whatsoever in the *FAC*. And even if those “misrepresentations” were described, it would not matter, as the statements would clearly fall within the

No. **A173827**); (see also RFJN **Ex. Q**, Plf’s Notice of Appeal; RFJN **Ex. R**, Plf’s Notice of Designating Record on Appeal).

1 ambit of the Anti-SLAPP protection as petitioning activity. All this, taken together, is conduct constituting
2 protected activity under Code Civ. Proc. § 425.16.

3 **B. STEP TWO IS MET: PLAINTIFF CANNOT PROVE A PROBABILITY OF SUCCESS**
4 **ON HIS CLAIM**

5 After a defendant makes a *prima facie* showing that the plaintiff's claim arises from protected
6 activity, the burden shifts to the plaintiff to show a probability of prevailing on the merits of his causes of
7 action. (*City of Cotati, supra*, 29 Cal.4th at 76.) If the plaintiff cannot meet that burden, the claim must be
8 dismissed. (*Id.*) To establish a probability of prevailing on the claim, "a plaintiff responding to an anti-
9 SLAPP motion must state and substantiate a legally sufficient claim." (*Huntingdon Life Sciences, Inc. v.*
10 *Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th, 1228, 1244-45.) Here, Plaintiff
11 cannot meet his burden because the FAC targets petitioning activity, which is barred by the litigation
12 privilege of Civil Code § 47(b). And further, Plaintiff's claim is legally untenable.

13 **1. Plaintiff's Claim is Barred by the Litigation Privilege in Civil Code § 47(b)**

14 Plaintiff cannot establish a probability of prevailing on the merits of his claim because Defendants'
15 alleged communications and actions are absolutely protected under the litigation privilege. The language
16 of Civil Code § 47(b) tracks the language discussed above in the Anti-SLAPP statute. Indeed, statements
17 protected under Civil Code § 47(b) are "equally entitled to the benefits of section 425.16." (*Briggs v. Eden*
18 *Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1115, quoting *Dove Audio, Inc., supra*, 47
19 Cal.App.4th at p. 784; *see also, Laker, supra*, 32 Cal.App.5th at p. 769 ("If the challenged action falls
20 within the litigation privilege, the trial court should grant an anti-SLAPP motion to strike."))

21 "A plaintiff cannot establish a probability of prevailing if the litigation privilege precludes the
22 defendant's liability on the claim." (*Digerati Holdings, supra*, 194 Cal.App.4th at p. 888; *see also, Laker,*
23 *supra*, 32 Cal.App.5th at p. 769 ("The privilege established by this subdivision often is referred to as an
24 absolute privilege, and it bars all tort causes of action except a claim for malicious prosecution."), quoting
25 *Hagberg, supra*, 32 Cal.4th at 360; *see also Laffer v. Levinson, Miller, Jacobs & Phillips* (1995) 34
26 Cal.App.4th 117, 122 (Section 47(b) litigation privilege "is a defense to other
27 torts...including...intentional interference with economic relations."].) Further, "[d]oubts about the
28 privilege's applicability are resolved in favor of its use." (*Pollock v. University of Southern California*
(2003) 112 Cal.App.4th 1416, 1430.)

1 The litigation privilege can satisfy both prongs of the Anti-SLAPP analysis. For example, in *Laker*,
2 the plaintiff sued his employer, Board of Trustees for California State University, for defamation arising
3 from a series of internal investigations conducted by the University. (*Laker, supra*, 32 Cal.App.5th at 753.)
4 After finding that the first prong of the Anti-SLAPP analysis was satisfied because an internal
5 investigation constituted an “official proceeding authorized by law” under Section 425.16, the court held
6 that the second prong was similarly satisfied because all the statements made in connection with the
7 investigation were absolutely privileged under Civil Code § 47(b). (*Id.* at 770.) The same is true here. To
8 the extent Plaintiff claims that CSAA’s pre-litigation investigation (*See FAC* p. 4:28-5:2) and subpoena
9 of certain records was “fraudulent,” that cannot constitute a claim as issuing subpoenas for records in a
10 pending litigation constitutes an “official proceeding authorized by law” under Section 425.16, like in
11 *Laker*. The same is true for Plaintiff’s allegations surrounding the defense’s arguments in motions in
12 limine, pre-trial. As discussed at length above, each of Plaintiffs’ causes of action against Defendants is
13 **premised on conduct protected by the litigation privilege in Civil Code § 47(b), and therefore**
14 **Plaintiff cannot possibly prevail.** (*See Park v. Board of Trustees of California State University* (2017) 2
15 Cal.5th 1057, 1060) (concluding when “the speech or petitioning activity *itself* is the wrong complained
16 of” it is subject to an Anti-SLAPP motion.) Therefore, the FAC should be dismissed without leave to
17 amend.

18 **2. Plaintiff’s FAC is an Unsupportable “Collateral Attack” on this Court’s Valid** 19 **Judgment**

20 Plaintiff is estopped from attempting this end-around of this Court’s underlying jury verdict and
21 entry of judgment. “A collateral attack is an attempt to avoid the effect of a judgment or order made in
22 some other proceeding.” *F.E.V. v. City of Anaheim* (2017) 15 Cal.App.5th 462, 471 (*quoting Rico v.*
23 *Nasser Bros. Realty Co.* (1943) 58 Cal.App.2d 878, 882.) “A judgment of a court of general jurisdiction
24 can only be set aside on collateral attack if the judgment is void on the face of the record.” (*Wouldridge*
25 *v. Burns* (1968) 265 Cal.App.2d 82, 84.) Finally, “collateral estoppel precludes relitigation of issues
26 argued and decided in prior proceedings.” (*Singh v. Lipworth* (2014) 227 Cal.App.4th 813, 826.)

27 Here, the FAC’s entire effort is to set aside a previously entered, valid judgment. Nowhere does
28 the FAC claim that the judgment is void on its face. Moreover, all those issues presented in this present
FAC were already “argued and decided in prior proceedings.” (*Singh, supra*, 227 Cal.App.4th at 826);

(see also RFJN **Ex. H**, *Order re Trial Scheduling and MILs*); (RFJN **Ex. P**, *Order Denying Plf's "Prayer" and 170.6*); (RFJN **Ex. S**, *Notice of Entry of Judgment*).

3. Plaintiff Cannot Prevail on His Cause of Action "in Equity to Set Aside Judgment for Extrinsic Fraud"

The sole cause of action to "Set Aside Judgment" is barred by Civil Code § 47(b). But even if it were not, Plaintiff still cannot demonstrate a probability of prevailing on the merits.

As a threshold matter, Plaintiff is clearly attempting a collateral attack on a valid jury verdict and judgment. However, the U.S. Supreme Court has long held:

"[t]here are no maxims of the law more firmly established, or of more value in the administration of justice, than ... to prevent repeated litigation between the same parties in regard to the same subject of controversy..." *U.S. v. Throckmorton* (1878) 98 U.S. 61, 65.

The U.S. Supreme Court in *Throckmorton* went on to state: "the doctrine [of setting aside a judgment] is equally well settled that the court will not set aside a judgment because it was founded on a fraudulent instrument, or perjured evidence, or for any matter which was actually presented and considered in the judgment assailed." (*Id.* at 66.) Here, Plaintiff already had every opportunity to present all the FAC's arguments. In fact, he did just that. First, Plaintiff was able to present the "material evidence," he now complains of, to the jury. However, the jury was presented that "material evidence" (911 call, bodycam footage, etc.) and still ruled against Plaintiff. Then, post-verdict, the Court ruled against Plaintiff on his flurry of post-trial motions. Plaintiff has not pled a sufficient basis to set aside the jury's verdict and this Court's judgment. Further, Plaintiff is presently engaged in filing his appeal of this Court's judgment. So, at an absolute minimum, this current lawsuit is premature, pending appeal. Meaning, Plaintiff cannot prevail.

Similarly, Plaintiff cannot demonstrate "extrinsic fraud." Indeed, "[w]hether the case involves intrinsic or extrinsic fraud or mistake is not determined abstractly. 'It is necessary to examine the facts in the light of the policy that a party who failed to assemble all his evidence at the trial should not be privileged to relitigate a case, as well as the policy permitting a party to seek relief from a judgment entered in a proceeding in which he was deprived of a fair opportunity fully to present his case.'" *Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 473, citing *Jorgensen v. Jorgensen* (1948) 32 Cal.2d 13, 19. Courts have held that this cause of action is less about actual misconduct on the other party, but rather "the excusable

neglect of the [moving party] to appear and present his [or her] claim or defense.” (*In re Marriage of Baltins* (1989) 212 Cal.App.3d 66.) “The term “extrinsic” refers to matters outside of the issues framed by the pleadings, or the issues adjudicated.” (*Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 738.)

Here, there no was fraud (extrinsic or otherwise) and everything in the FAC constitutes “issues [already] adjudicated,” at trial (i.e.: matter *intrinsic* to the underlying litigation). (*Aldrich, supra*, 170 Cal.App.3d at 738.) Conversely, proving “extrinsic fraud” requires demonstrating that Plaintiff was prevented from having their day in court and arguing their case, such as an inducement into a settlement, or other fraudulent representations to deprive a party of seeking a remedy at law. On the contrary, merely losing a motion or failing to get pieces of discovery admitted during a trial does not mean that one was denied their day in court. A seminal case analyzing “extrinsic fraud” is entitled *Kulchar v. Kulchar* (1969) 1 Cal.3d 467. The *Kulchar* court discussed circumstances which *may* constitute actual extrinsic fraud, thus:

Extrinsic fraud usually arises when a party is denied a fair adversary hearing because he has been ‘deliberately kept in ignorance of the action or proceeding, or in some other way fraudulently prevented from presenting his claim or defense ... as by keeping him away from court, a false promise of a compromise; or where the defendant never had knowledge of the suit, ... or where an attorney fraudulently or without authority assumes to represent a party and connives at his defeat; or where the attorney regularly employed corruptly sells out his client's interest to the other side. (*Kulchar, supra*, 1 Cal.3d at 471).

The *Kulchar* court found no extrinsic fraud, citing reasons similar to this case. The *Kulchar* court concluded that that plaintiff presented merely “a case in which a party failed to assemble all his evidence at the trial.” (*Kulchar, supra*, 1 Cal.3d at 473.) The same is true here. Plaintiff was not denied his day in court. Court ruled squarely on all the issues presented here. Further, Plaintiff was free to present his claims to the jury, including his claim that he was hit by Insured’s vehicle. The jury simply disagreed with Plaintiff on liability. Plaintiff is now dissatisfied with the result. That does not justify setting aside the jury’s verdict. On the contrary, Plaintiff’s FAC explicitly acknowledges that the underlying judgment “is valid on its face.” (*FAC* at 25). Plaintiff has not, in any sense, been denied his day in court. Thus, Plaintiff cannot succeed on the merits of his underlying claim to set aside judgment.

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V. CONCLUSION

Plaintiff's FAC is simply another attempt to get a second bite at the apple—by relitigating all the same issues from his underlying case. All the activities alleged as wrongful are comprised of litigation conduct, which are squarely protected conduct under Code Civ. Proc. § 425.16 and Civ. Code § 47. Meanwhile, Plaintiff cannot demonstrate a probability of success on the merits of his claim. Therefore, Defendants respectfully request that the Court grant this Special Motion to Strike and impose attorneys' fees and costs against Plaintiff for necessitating this motion.

Dated: April 9, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____
Chad S. Tapp
Tyler J. O'Connell
Attorneys for Defendant
CSAA INSURANCE EXCHANGE, CARBONE,
SMITH & KOYAMA, AND MICHAEL R.
CHAMBERS

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 9, 2026, I served the following document:

7 **MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF SPECIAL MOTION TO**
8 **STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT PURUANT TO C.C.P. § 425.16**
9 **(ANTI-SLAPP MOTION)**

10 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
11	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
12	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
13	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

14 Addressed as follows:

15 **PLAINTIFF, IN PRO PER**

16 Franciscus Dylan Rosario
17 7624 Melody Drive
18 Rohnert Park, CA 94928
19 soltrinox@gmail.com

20 I declare under penalty of perjury under the laws of the State of California that the foregoing is
21 true and correct. Executed on Sacramento, California on April 9, 2026.

22 **Monique Schubert**
23 Monique Schubert